the EC reserves the right to confer recognition on any faction it deems to be a legitimate heir of a parent party by virtue of its numbers. The faction that does not meet the EC's test can register itself as a new party with a different symbol. Alternatively, the EC can also freeze the original symbol and allot different symbols to warring factions. The 1968 order is not a law, but the courts have time and again held it to be valid, including in the *Sadiq Ali vs EC* case of 1972 where numerical strength was laid down as a valuable and relevant test.

In practical terms, it's a bit of an ask, though. Normally, the EC first checks the support each faction enjoys among active members in the party's organisation and its legislature wings. Then it quantifies the support each faction enjoys within the top committees, decision-making bodies and other elected branches like its trade union, women's wing, youth wing et al—asking the warring factions to submit affidavits from office-bearers expressing their support. "It's practically impossible for the EC to verify the signature on each and every affidavit," former chief election commissioner S.Y. Quraishi told Mumbai Tak. "The election symbol is needed when there's an election. As no election has been announced in Maharashtra so far, the EC will get time."

Uddhav claims the Shinde faction is trying to cobble up numbers illegally and fabricate an artificial majority in the party

Constitution experts cite two recent cases of relevance here. In 2017, the EC had found a group led by Akhilesh Yadav to be the original Samajwadi Party, against the claims of a group led by his father Mulayam Singh. Accepting Akhilesh's claim of having the support of 205/228 MLAs, 56/68 MLCs and 15/24 MPs, besides a majority of national executive members and national convention delegates, the EC allowed him to use the party's name and its symbol, the bicycle. In the case of the split in the Lok Janshakti Party (LJP) in 2020, however, the election symbol 'hut' was frozen as the ECI could not determine a winner between the rival claimants—party president Chirag Paswan and his uncle Pashupati Kumar Paras—both of whom had claimed control over the LJP and passed orders "expelling" each other.

In the Sena's case, a majority of its elected representatives—40/55 MLAs and 12/22 MPs, though only one of 10 legislative council members—are on Shinde's side. The party's national executive is backing Uddhav. Most office-bearers, too, have expressed solidarity with him as of now. In a technical knockout that may or may not win the EC's favour, Shinde 'dismissed' the pro-Uddhav national executive on July 18 and announced a new, captive executive. Shinde's team also created a post called 'chief leader' and installed him there.

Interestingly, neither Uddhav nor Shinde have expelled each other from the party. For the Shinde faction, Uddhav is still '*paksh pramukh*' (party chief), the post created for him in 2012 after Bal Thackeray's death. "We won't take any action against Uddhavji. He is still the party's chief," says Shinde camp spokesperson Uday Samant. "We are the Shiv Sena. We haven't formed any separate group. There is no question of a split." An EC decision on these questions can shape the future of Maharashtra politics—and the future is around the corner. Elections to 15 municipal corporations and 200 municipal councils—about the richest local bodies in India—are due in October-November. Who will the EC arm with the Bow and Arrow? Who will have to launch a new party or merge with another? Well, the next move is for the Supreme Court to make. ■



Three murders, that too in quick succession. That was enough to shake up Dakshina Kannada, the already communally tense region in southern Karnataka. But the effect the events had on the state's ruling BJP was even more striking. A few telling images spoke of a deep ferment, especially among the younger cadre. State unit chief Nalin Kumar Kateel, visiting the bereaved family of a BJP Yuva Morcha member who was murdered on July 26, had his car rocked violently by irate party workers. Two days later, protesting ABVP members tried to barge into home minister Araga Jnanendra's official residence. An uncommon airing of dissent in a party known for its discipline. What led up to it?

A trail of blood, and three corpses. The first murder took place on July 19 in Bellare village, some 80 km southeast of Mangaluru. Police say Masood B., a 19-year-old, was involved in a squabble with another local named Sudhir. The latter later approached Masood, with a gang